Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1317
Claimant:	Michael Gilbert
Adjuster:	Darin Tyler

2023-04-23
First notice of loss received from the policyholder's household member, who was driving at the time of a low-speed head-on collision. The driver is covered as a household member under the policy, and the claimant has retained a lawyer who has asked that all contact go through their office.

2023-06-22
Vehicle inspection completed. The damage matches the described impact, and no earlier damage to the vehicle is known. Nothing in the file suggests the damage predates the start of coverage.

2023-07-29
Police report and people at the scene confirm the claimant was in the vehicle. Photos from the scene confirm some details of the collision, but no independent witness saw the impact itself.

2023-10-17
Claimant's medical records show neck and back strain, which is a plausible injury for a crash of this type. Records also show no earlier injury to the same body area.

2023-11-01
Recorded statement taken from the claimant. The account differs from the first notice in the direction of impact and in the number of people in the car, and this has been noted for follow-up with counsel.

2023-11-30
Treatment has continued to grow well beyond what this injury usually requires, with more visits and new services added each month. Medical review requested to assess whether the scope of care matches the injury, and the claim remains open pending that review.

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Recorded Statement

Claim number:	C-1317
Statement of:	Michael Gilbert
Taken by:	Darin Tyler
Date:	2023-04-17

Q: Thank you for agreeing to give a recorded statement today. Please state your full name for the record.

A: I'd prefer to leave my name off the recording, if that's okay. You already have it on the claim.

Q: That's fine. Can you describe where you were driving when the collision happened?

A: I was on a main road in Houston, heading toward a shopping center. It was a weekday afternoon and traffic was moving slowly.

Q: What happened right before the impact?

A: The car in front of me stopped suddenly. I braked, but the vehicle behind me had already been closing in, and it didn't stop in time. I think it was going maybe ten or fifteen miles an hour when it hit me.

Q: Which part of your vehicle was struck?

A: The rear bumper of the car I was driving took most of it. Actually, I should say it was a head-on, so I mean the front of my car. I got those mixed up because I was turning around in my seat at the time.

Q: Understood. Were you wearing your seatbelt?

A: Yes, I was.

Q: Did the airbags deploy?

A: No, they didn't. The impact was not strong enough for that.

Q: How are you feeling since the collision?

A: My neck is stiff and sore, especially when I turn my head to the left. My lower back aches, and sitting for long periods makes it worse. I've been taking over-the-counter pain relievers and using a heating pad.

Q: Have you seen a medical provider?

A: Yes, I went to an urgent care clinic the same day. They examined me and told me it looked like a neck and back strain, and they gave me a follow-up plan.

Q: Is there anything else you would like to add?

A: Only that I want to get back to normal as soon as possible. Tahnk you for your time.